terminated by Company or Contractor. If any provision herein is struck down or modified or limited by action of a court or government agency having jurisdiction over same, remaining provisions of the agreement shall remain in full force and effect providing that essential purposes of the contract can be fulfilled notwithstanding such action. Providing further that, if any court or other agency finds any provision herein to violate any applicable law or regulation, the parties hereto request that such court modify or limit and not strike such provision so as to best effect achievement of contract purposes. The provisions of this agreement shall be binding on and inure to the benefit of the heirs, successors, and assigns of the parties.

21. Jurisdiction: This Agreement and any dispute arising under or related to same shall be subject to the exclusive jurisdiction and laws of the Commonwealth of Massachusetts and its Courts. If the dispute involves laws over which the Federal Courts exercise exclusive jurisdiction, the dispute shall then be heard in The United States District Court for Massachusetts. Providing, however, that Company may bring an action in any jurisdiction as required to protect its copyright or other intellectual property rights in its software. The parties shall not rely on the conflicts of Law rules of any jurisdiction to dispute the provisions of this section.

COMPANY

By Michael J Murphy

Title Chairman

Date Jan 31, 2008

CONTRACTOR

Date 31/01/2008